



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 11 judgments on Tuesday 21 May 2019 and 59 judgments and / or decisions on Thursday 23 May 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 21 May 2019

G.K. v. Belgium (application no. 58302/10)

The applicant, G.K., is a Belgian national who was elected to the Senate in the June 2010 parliamentary elections.

In this case, G.K. alleges that she was unlawfully removed from her seat in the Senate and that she did not have an effective remedy to challenge the Senate's decision.

In August 2010, during a private trip to Asia, G.K. was suspected of drug-related offences, which she denied. She informed the President of the Belgian Senate. On her return to Brussels, the President of the Senate summoned her to a meeting attended by two other senators from her own party. According to G.K., at the end of the meeting she was compelled to sign a pre-written resignation letter.

In September 2010 the director of the Senate confirmed receipt of the resignation. Several days later, G.K. informed the President of the Senate that she wished to continue her term as a senator, arguing that she had been coerced into signing the resignation letter. She was subsequently informed that it would be for the plenary Senate to give a decision on the merits of the case when verifying the credentials of her successor.

In October 2010 the Senate held a plenary session at which it found that there was no cause to challenge the validity of G.K.'s resignation. Her successor was duly sworn in. G.K. maintains that she was prevented from entering the chamber of the Senate.

Relying on Article 3 of Protocol No. 1 (right to free elections) to the European Convention on Human Rights and Article 13 (right to an effective remedy) of the Convention, G.K. complains that she was deprived of her seat in the Senate.

O.C.I. and Others v. Romania (no. 49450/17)

The applicants, Ms O.C.I. and her children, P.A.R. and N.A.R., are Romanian nationals who were born in 1978, 2008, and 2010.

The case concerns their complaint that the Romanian courts ordered the children's return to their father in Italy, despite allegations of domestic violence.

After spending the summer holidays in Romania in 2015, Ms O.C.I. decided not to go back to her husband in Italy with their children.

The children's father, an Italian national, brought proceedings for the return of the children to Italy, their habitual place of residence, under the Hague Convention on the Civil Aspects of International Child Abduction. Ms O.C.I. opposed the action, alleging that her husband was violent towards his children. He beat them if they disobeyed and humiliated them by calling them names. She submitted

several video-recordings of such violent episodes. The abuse had worsened in recent years and she had felt obliged to seek refuge in Romania.

In 2016 the Romanian courts allowed the father's application for the return of the children, a decision upheld in 2017. The courts found that the children had been subjected to physical force by their father, but that there had only been occasional acts of violence which would not reoccur "often enough to pose a grave risk". They also found that, in any case, the Italian authorities would be able to protect the children if the risk of abuse was brought to their attention.

The authorities have not so far, however, been able to enforce the return order because the children have refused to go back to Italy. The applicants are all still apparently living in Romania.

Relying on Article 3 (prohibition of inhuman or degrading treatment) and Article 8 (right to respect for private and family life) of the Convention, the applicants complain about the order to return the children to Italy. They allege in particular that the Romanian courts failed to take into account the grave risk of mistreatment they faced at the hands of their father, which was one of the exceptions under the Hague Convention to the principle that children should be returned to their habitual place of residence.

[O.O. v. Russia \(no. 36321/16\)](#)

The applicant, Mr O.O., is an Uzbek national who was born in 1989.

The case concerns his deportation to Uzbekistan from Russia, in spite of an interim measure by the European Court of Human Rights staying his removal.

Mr O.O. arrived in Russia in 2012. He was convicted in 2014 of participating in an extremist organisation, forgery and attempting an illegal border crossing. He was transferred to a penal colony to serve his sentence.

In 2016 the migration authorities ordered his deportation. He challenged this decision in court, arguing that he stood accused of religious extremism in Uzbekistan and therefore belonged to a vulnerable group at risk of ill-treatment if he were returned. The courts rejected his arguments, concluding that any risk was based on speculation.

Mr O.O. was released on 30 June 2016, and immediately arrested with a view to his deportation. His lawyers contacted the prosecuting and migration authorities, as well as the police, to inform them that the European Court of Human Rights had granted an interim measure (under Rule 39 of its Rules of Court) two days earlier to stay his removal for the duration of the proceedings before it. He was, however, flown to Moscow Domodedovo Airport and deported the next day to Uzbekistan. The police say they arrived too late to get Mr O.O. from the plane which was preparing for take-off, while the prosecuting authorities stated that they had only been informed of the interim measure after the deportation had taken place.

Mr O.O. was immediately arrested on arriving in Uzbekistan, and is currently serving a seven-year sentence in a penal colony. He alleges that he was mistreated during the investigation in Uzbekistan and that his detention conditions are inhuman, causing him to almost lose his eyesight and attempt suicide.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Mr O.O. complains that the Russian authorities failed to consider his arguments that he would face a real risk of ill-treatment if deported to Uzbekistan. He also alleges that his deportation disregarded the interim measure indicated by the European Court, in breach of Article 34 (right of individual petition).

Thursday 23 May 2019

[Mirzoyan v. Armenia \(no. 57129/10\)](#)

The case concerns the killing of the applicant's son while he was on military service.

The applicant, Robert Mirzoyan, is an Armenian national who was born in 1954 and lives in Marmarashen village (Armenia).

The applicant's son, Gegham Sergoyan, was performing his compulsory military service in the unrecognised Republic of Nagorno Karabakh when he was shot in the head by one of his officers in April 2007. He died without regaining consciousness in May of the same year.

The officer, who had had reprimands from his superiors in the past, admitted the shooting and was sentenced to 15 years' imprisonment in 2009. The trial court rejected a civil claim for compensation from the State which the applicant had lodged during the proceedings, finding that domestic law did not provide for compensation for non-pecuniary damage.

Appeals by the applicant to both the Court of Appeal and the Court of Cassation were unsuccessful. He cited in particular the rights on compensation flowing from the Convention, which he argued had to prevail over domestic law by virtue of Article 6 of the Constitution of Armenia.

Relying on Article 2 (right to life) and Article 13 (right to an effective remedy), the applicant complains that the State authorities failed to protect his son's right to life and that his claim against the State for non-pecuniary damage suffered as a result of that loss was dismissed.

[Chebab v. France \(no. 542/13\)](#)

The applicant, Mr Fouhed Chebab, is a French national who was born in 1976 and lives in Nancy. The case concerns the circumstances in which he was shot by a police officer while being arrested.

On 8 March 2000 a resident of Thionville called the police at about 4.30 a.m., saying that two men were trying to break into flats in his building. Two police officers were dispatched to the scene. The resident showed them two men sitting on a bench near the building. The police officers went to arrest the men, and one of the officers fired a shot from his weapon, injuring the applicant on the neck and right shoulder. An investigation by the Regional Police Department concluded that the police officer had used his weapon in self-defence and that the applicant had threatened him with a knife.

On 19 May 2000 the applicant was summoned to appear before the Criminal Court on charges of intentional assault involving the use of a weapon against a person exercising public authority. On 16 January 2001 the court declared the proceedings null and void on account of the delay in notifying the applicant of his rights. The Metz Court of Appeal upheld that judgment, adding that the proceedings were also null and void because of the unlawful manner in which the knife had been seized. It noted, among other things, that the various actions performed on that object had made it impossible to reach any findings that could assist in establishing the truth, bearing in mind that the applicant and the police officer had given entirely conflicting versions of the events.

On 18 July 2002 the applicant lodged a criminal complaint and civil-party application concerning offences of attempted murder, altering the state of a crime scene and assault involving the use of a weapon by a person exercising public authority. On 17 March 2003 the public prosecutor applied to have a judicial investigation opened in respect of the police officer who had used his weapon. On 2 July 2010 the investigating judge discontinued the proceedings, finding that the evidence gathered was not capable of invalidating the police officer's version of events. The Court of Appeal upheld the discontinuance order, observing that it was difficult to establish what had actually happened during the arrest and that the analysis of the reconstruction of events lent weight to the idea that the police

officer had acted in self-defence. The court added that the shot had to be deemed proportionate to the circumstances. The Court of Cassation dismissed an appeal on points of law by the applicant.

Relying on Article 2 (right to life), the applicant complains that his life was endangered as a result of a police officer's use of force and alleges that the investigations by the national authorities were not satisfactory from the standpoint of that Article.

[Sine Tsaggarakis A.E.E. v. Greece \(no. 17257/13\)](#)

The applicant, Sine Tsaggarakis A.E.E, is a company with its registered office in Greece. It operated in the entertainment sector and ran a multiplex in Heraklion.

In this case, the applicant company complains of a divergence between the case-law of the plenary Supreme Administrative Court and that court's Fourth Section, alleging that they delivered conflicting decisions in proceedings to which it was a party.

The proceedings concerned an application for judicial review of building permits awarded to rival companies for the operation of a multiplex. The applicant company argued in the national courts that the permits were illegal since they related to land set aside for the construction of private residential premises and the authorities had not carried out a prior assessment of compliance with the environmental criteria laid down in the relevant legislation. The events took place between 2007 and 2016.

Relying on Article 6 § 1 (right to a fair hearing) and Article 13 (right to an effective remedy), the applicant company complains that it was not given a fair hearing, particularly in terms of legal certainty, by an impartial tribunal.

[Doyle v. Ireland \(no. 51979/17\)](#)

The applicant, Barry Doyle, is an Irish national who was born in 1985. He is currently serving a life sentence in Mountjoy Prison, Dublin.

The case concerns the applicant's complaint that he was denied access to a solicitor during questioning on suspicion of murder.

Mr Doyle was arrested in February 2009 in connection with the killing of a man, S.G., which had taken place in November 2008. The applicant was taken to a police station, where he was informed of his rights and given initial access to a particular solicitor.

He was subsequently interviewed many times. He had access to a solicitor in person and by telephone prior to, and during, the interviews but the solicitor was not present while the applicant was being interviewed. He admitted killing S.G. in the fifteenth interview and gave a number of details about the crime. The police questioned him several more times after that.

After a jury failed to reach a verdict in 2011, he was again tried in February 2012. He sought to have his admissions excluded, arguing that he had been induced, threatened, and denied access to legal advice. The trial judge dismissed his objections and he was found guilty by the jury of murdering S.G. and given a life sentence. Appeals to the Court of Appeal and the Supreme Court were unsuccessful. The judges of the Supreme Court, which rejected his appeal by a six votes to one in January 2017, discussed in particular the right of access to a solicitor during questioning by the police.

Relying on Article 6 §§ 1 and 3 (c) (right to a fair trial and right to legal assistance of own choosing), the applicant complains that he was not able to have a solicitor present during his interrogation, representing a failure by the respondent State to provide him a fair trial. In the absence of a solicitor, his right to silence and right not to incriminate himself were eroded. The refusal to exclude his admissions effectively deprived him of any defence at trial.

Kanciał v. Poland (no. 37023/13)

The applicant, Maciej Kanciał, is a Polish national who was born in 1985 and lives in Gdańsk (Poland).

The case concerns his allegations of police brutality during a police raid.

The applicant was arrested in June 2011 as part of a police investigation into a kidnapping. He alleged that he had been mistreated during the arrest, in which a group of armed and masked police officers had stormed into the flat where he was at the time. In particular, he stated that he had been hit on the head, back and neck and given shocks from an electrical discharge weapon.

A prosecutor took up his allegations in July 2011 over charges of abuse of power by the police, but discontinued the investigation the following year. The prosecutor found that although the applicant's version of events could not be ruled out and that he had been injured during the raid, there was insufficient evidence to confirm that the police officers had committed any offence. An appeal by the applicant against that decision was dismissed by a court in March 2013.

Relying on Article 3 (prohibition of [torture and of inhuman or degrading treatment]), the applicant complains of ill-treatment by the police and of a lack of a proper investigation into his allegations.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 21 May 2019

Name	Main application number
Urbonavičius v. Lithuania	549/17
Cristea v. Romania	56681/14
Năstac v. Romania	74238/14
A.S. v. Russia	17833/16
Bykovtsev and Prachev v. Russia	27728/08
Ledentsov v. Russia	47283/09
Zaykina v. Russia	14620/09
Deyneko v. Ukraine	20317/09

Thursday 23 May 2019

Name	Main application number
Mavrodijski v. Bulgaria	43203/09
Yaacoub v. Cyprus	60416/14
MHZ Kft. v. Hungary	47872/15
Ogieriakhi v. Ireland	57551/17
Gatčinas v. Lithuania	19845/15
Liutkevičius v. Lithuania	58750/16
Žvirblis v. Lithuania	31378/15
F.P.C. Ștefsotra S.R.L. v. the Republic of Moldova	25676/12
Olișevschi v. the Republic of Moldova	25561/10
Carpen v. Romania	17021/12
Georgescu v. Romania	62797/15

Name	Main application number
S.C. Paulus S.R.L. v. Romania	36419/13
Ştefan Popa v. Romania	71730/13
Solovjov and Others v. Russia	2075/14
NASK, s.r.o. v. Slovakia	50817/15
Akkaş and Çoğaltay v. Turkey	9475/10
Alinak v. Turkey	8054/10
Altıokka v. Turkey	57915/10
Altun and Koçak v. Turkey	30681/11
Ateş v. Turkey	61116/11
Atsız and Others v. Turkey	32460/13
Aykaç v. Turkey	31226/09
Bağrıyanık v. Turkey	66468/09
Bayır v. Turkey	18679/10
Baz v. Turkey	44728/09
Bulut v. Turkey	66125/09
Çelik v. Turkey	44247/12
Çerik and Others v. Turkey	5763/10
Çiçen v. Turkey	25022/09
Cihaner v. Turkey	21126/15
Deniz v. Turkey	62992/11
Doğan v. Turkey	6866/17
Doksal v. Turkey	53448/09
Durmuş v. Turkey	25604/08
Ertekin v. Turkey	60217/10
Ezer and Others v. Turkey	55882/07
Genç v. Turkey	38358/11
Genceri v. Turkey	36307/09
Gönçe v. Turkey	68045/11
Günay and Yamalak v. Turkey	6675/10
Güzel and Others v. Turkey	2508/05
Hacıömeroğlu v. Turkey	26778/05
İnci v. Turkey	57985/10
Kaya v. Turkey	45629/09
Keskin v. Turkey	57256/10
Okuyucu v. Turkey	78792/11
Oruç v. Turkey	41963/10
Sağlam and Others v. Turkey	3407/10
Süsem v. Turkey	58038/11
Tuncer Güneş v. Turkey	57202/11
Vesek and Others v. Turkey	12960/13
Yalçın v. Turkey	49005/09
Yılmaz and Others v. Turkey	73403/10
Yusuf v. Turkey	39393/08

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Press contacts

echrpress@echr.coe.int | tel: +33 3 90 21 42 08

Tracey Turner-Tretz (tel: + 33 3 88 41 35 30)

Denis Lambert (tel: + 33 3 90 21 41 09)

Inci Ertekin (tel: + 33 3 90 21 55 30)

Patrick Lannin (tel: + 33 3 90 21 44 18)

Somi Nikol (tel: + 33 3 90 21 64 25)

The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.